

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

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TERRENCE SOLOMON,

SUMMONS

Plaintiff,

Plaintiffs designate BRONX
County as the place of trial.

against

The basis of venue is:
Plaintiff's Residence

CITY OF NEW YORK, P.O. JULIO RODRIGUEZ
and P.O. JESSICA THOMAS,

Plaintiffs reside at:
Bronx County

Defendants,

-----X

County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: November 3, 2020
White Plains, NY

RAWLINS LAW, PLLC

/s/

Gary N. Rawlins, Esq.

Attorney for Plaintiff

TERRENCE SOLOMON

777 Westchester Avenue, Suite #101

White Plains, NY 10604

Tel : (212) 926-0050

Fax (347) 332-1592

TO:

Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

P.O. JULIO RODRIGUEZ Tax Reg. # 942457
P.O. JESSICA THOMAS
43rd Precinct
900 Fteley Ave,
Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Docket No.:
Date Purchased:

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TERRENCE SOLOMON,

COMPLAINT

Plaintiff,

against

CITY OF NEW YORK, P.O. JULIO RODRIGUEZ,
and P.O. JESSICA THOMAS,

Defendants.

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Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

2. The Plaintiff, **TERRENCE SOLOMON**, at all times herein mentioned was and still is a resident of the County of BRONX and the State of New York.

3. At all times mentioned herein, Defendant **P.O. JULIO RODRIGUEZ Tax Reg. # 942457**, at all times herein mentioned was and still is a resident of the County of BRONX, State of New York.

4. At all times herein mentioned, Defendant **CITY OF NEW YORK** (“NYC”), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendants **NYC** and Defendants **P.O. JULIO RODRIGUEZ and JESSICA THOMAS** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendants **NYC** are vicariously liable for the acts of Defendant **P.O. JULIO RODRIGUEZ and P.O. JESSICA THOMAS**.

7. At all times herein mentioned, Defendant **P.O. JULIO RODRIGUEZ Tax Reg. # 942457** was and still is a police officer employed by the New York City Police Department.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR NEGLIGENCE AND FALSE ARREST AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF’S UNITED STATES CONSTITUTIONAL RIGHTS

8. Plaintiff **TERRENCE SOLOMON** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff **TERRENCE SOLOMON** sues all Defendants in their capacities.

10. On or about June 27, 2015, at approximately 10:00am, Plaintiff **TERRENCE SOLOMON** was at or about 1121 Elder Avenue, Bronx, NY, returning from the store when Noel Oliver attacked Plaintiff with a machete. Plaintiff **TERRENCE SOLOMON** defended himself from Mr. Oliver's attack using a small utility pocket knife he had in his pocket used in the course of his work. After Mr. Oliver retreated, Plaintiff continued to walk to his home when he was stopped by defendant **P.O. JULIO RODRIGUEZ** who asked him what happened to him. Plaintiff explained that NOEL OLIVER attacked him with a machete.

11. Defendant **P.O. JULIO RODRIGUEZ** negligently pursued the prosecution of Mr. Solomon without properly investigating what occurred. Specifically, the defendants negligently failed to investigate other information that would have demonstrated Mr. Solomon's innocence. Defendant Rodriguez and Defendant John Doe were negligent in performing proper police investigation procedures at the time of the arrest and in failing to do so throughout the prosecution of Mr. Solomon.

12. **P.O. JULIO RODRIGUEZ** brought Plaintiff to Lincoln Hospital for treatment and then transferred him to the 43rd Precinct. Mr. Solomon was in custody for 48 hours.

AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

13. Plaintiff was maliciously prosecuted. All charges were dismissed on May 3, 2017.

14. At all relevant times, Defendant **P.O. JULIO RODRIGUEZ** and **P.O. THOMAS**

acted forcibly in apprehending, arresting and imprisoning Plaintiff **TERRENCE SOLOMON**.

P.O. JULIO RODRIGUEZ instituted a criminal action against Terrance Solomon. The prosecution ended in Mr. Solomon's favor as he was acquitted on May 3, 2017 after a jury trial. There was no probable cause to initiate the criminal proceeding as Mr. Solomon was a stranger to his attacker and was forced to defend himself. The defendants acted maliciously in attempting to get an innocent man to plead guilty to a crime that he did not commit. Upon information and belief, the defendant officers withheld exculpatory information from the prosecutors.

AS AND FOR A THIRD CAUSE OF ACTION FOR A MONELL CLAIM AGAINST

NYC

15. Prior to June 27, 2015, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Solomon's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and thereby failing to adequately discourage further constitutional violations on the part of their agents. Specifically, officers were encouraged to withhold information to force plea deals. The respondents agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

16. Plaintiff **TERRENCE SOLOMON** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

17. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and defendant **OFFICERS** , failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **TERRENCE SOLOMON** by defendant **OFFICERS**.

18. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **TERRENCE SOLOMON** rights to be free from unreasonable searches and seizures and excessive use of force.

19. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

20. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: November 3, 2020
White Plains, NY

RAWLINS LAW, PLLC
/s/ Gary N. Rawlins
Gary N. Rawlins, Esq.
Attorney for Plaintiff
TERRENCE SOLOMON
777 Westchester Avenue, Suite #101
White Plains, NY 10604
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TO:

Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

P.O. JULIO RODRIGUEZ
P.O. JESSICA THOMAS
43rd Precinct
900 Fteley Ave,
Bronx, NY 10473

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY
November 4, 2020

Respectfully Submitted,

/s/
Gary N. Rawlins